

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

January 10, 2022

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. at the Cheyenne Civic Center, 510 W. 20th St., and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel (via Zoom), Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Election of City Council President for 2022. Mayor Collins announced that pursuant to Title 2 of Cheyenne City Code the Mayor conducts the election for the office of City Council President but does not cast a vote. Mr. White nominated Mr. Roybal, seconded by Mr. Cook. Mr. Roybal accepted the nomination. There being no further nominations, Dr. Aldrich moved to cease nominations, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body. Motion to nominate and elect Mr. Roybal as City Council President for 2022 carried. Voting “yes” – all members of the governing body. Mayor Collins presented a plaque to Mr. White in appreciation of his time as Council President for 2021.

Election of City Council Vice-President for 2022. Mayor Collins announced that pursuant to Title 2 of Cheyenne City Code the Mayor conducts the election for the office of City Council Vice-President but does not cast a vote. Mr. Cook nominated Mr. Johnson, seconded by Mr. Roybal. Mr. Johnson accepted the nomination. There being no further nominations, Dr. Aldrich moved to cease nominations, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Motion to nominate and elect Mr. Johnson as City Council Vice-President for 2022 carried. Voting “yes” – all members of the governing body.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Dr. Aldrich moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on December 28, 2021. Motion (per Consent Agenda) carried.

ORDINANCE –3rd READING – Amending the Unified Development Code of the City of Cheyenne, Wyoming, to create the definitions, ‘Functional Turf’ and ‘Non-Functional Turf’ and amending various sections of Article 6. Brad Brooks, Director of Board of Public Utilities (BOPU), expressed BOPU’s overall support of the ordinance and expressed appreciation to Planning and Development and BOPU staff who have worked on the ordinance. Mr. Brooks provided information on the amount of water the city is permitted to utilize and water sources

noting the ordinance change is proactive to preserve water. Mr. Brooks further provided information on several proposed projects that will result in additional water including: enlarging water reservoirs, optimization of snake system, recycled water system expansion, Belvoir well field expansion, well field ground penetration project (map of possible groundwater) and utilizing recycled waste water which will free up water sources. Mr. Brooks advised it is estimated that the city can probably survive for 3 years on the current water supply if no additional water was to be received. Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Johnson. Appreciation was expressed to Mr. Brooks for his overview of the city's water supply and comments were made on the following: importance of attractive landscaping requirements for businesses, importance of ongoing water conservation efforts, businesses still being able to have bluegrass if they wish and the importance of Planning and Development staff working with developers and the community to help them understand the definition of functional vs. non-functional turf. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Segrave voting "no". (#4409)

ORDINANCE –3rd READING – Pursuant to Section 2.2.2 Planned Development – Regulating Plan or Development Master Plan, Section 5.1.3 Official Zoning Map, and Section 5.6.2 PUD - Planned Unit Development District of the Unified Development Code, Amending Ordinance No. 4232 by modifying certain standards of the Adopted District, Planned Unit Development (PUD), for a portion of Sections 8 & 9, all of the W1/2 Section 14, a portion of the E ½ E ½ of Section 17, and all of Sections 15, 16, & 21; Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (Located to the southeast of the intersection of E. College Drive and Avenue C). Casey Palma, Palma Land Planning, agent for the owner, provided information on the Sweetgrass PUD that was approved in 2018 with certain requirements noting the proposed development area has 1,400 sq. ft. of open space. He advised the owner looked at the PUD and what might be discouraging and certain provisions seemed excessive. When there is a parcel in a PUD which is contiguous with the Greenway, some of the burden can be reduced to provide affordable housing. Upon inquiry, Mr. Palma provided information on the requested proposed change to the PUD which includes 40% contiguity to the Greenway and does not require a clubhouse in the development noting this doesn't water down code requirements but is a balance for the need of providing affordable housing with the open space and connectivity to the Greenway. Upon further inquiry, Mr. Palma explained the proposed change wouldn't just affect this development because it is a change to the PUD in its entirety and only certain properties meet the requirement of 40% contiguity to Greenway. Upon further inquiry, Mr. Palma explained the ordinance change isn't for the development construction piece which is reviewed through the site plan process. In response to a comment made regarding commitment of the development being affordable housing, Mr. Palma advised as agent of the owner and representing HOA entities, it isn't something they necessarily have complete control over and the ordinance change allows for increased density. He further advised this is a way to reduce costs for the developer which enables them to provide more density and lower costs for renters. Mr. Palma explained upon inquiry, that proper notification was made to adjacent properties related to Greenway access, open space, etc. and advised the proposed change does not reduce the overall open space in Sweetgrass. Mr. Palma provided further project information including: Greenway and trails plan in the PUD, project is within 1,000 ft. of green space in commercial area, the parcel has direct access through a tunnel being constructed to LCCC and the demographic for the units will likely be students and as Sweetgrass moves south, there's less contiguity to greenway and burden would be higher to find

40% contiguity. Upon inquiry, Connor White, Planning and Development Department, explained that in the past 2 years developments with 100 units have been very minimal, and generally they see 80-90 unit developments. Dr. Rinne moved to approve on third and final reading, seconded by Mr. White. Upon inquiry, Charles Bloom, Director of Planning and Development, explained the scope of the Sweetgrass development seems to change, but currently there are 3-4 lots that can support 100-unit developments. Comments were made on the following: opposition of the ordinance change as it will apply to other properties and developments not just Sweetgrass, staff's original recommendation of 25 units with 40% contiguity to the Greenway, large apartment complexes typically include a clubhouse, how the proposed ordinance change could push people into city parks which could burden city employees to maintain increased park population and concern that there is no guarantee the development will be affordable housing. Motion carried. Voting "yes" – Mr. Cook, Mr. Johnson, Mr. Laybourn, Dr. Rinne, Mr. Roybal and Mr. White. Voting "no" – Dr. Aldrich, Mr. Esquibel, Mayor Collins and Mr. Segrave. (#4410)

ORDINANCE – 3rd READING – Amending Ordinance No. 4396 Defining the Terms and Conditions of Employment for Sworn Officers of the Cheyenne Police Department for Fiscal Year 2021-2022. Reporting for Finance Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. White. Mr. Roybal moved to amend by substitute Exhibit B which includes the \$1.50 wage increase approved at the December 28, 2021 meeting of the governing body, seconded by Mr. Segrave. Motion to amend by substitute Exhibit B carried. Voting "yes" – all members of the governing body. Main motion as amended carried. Voting "yes" – all members of the governing body. (#4411)

ORDINANCE – 2nd READING – Amending Chapter 10.76, Abandoned Vehicles, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming. Mr. Roybal moved to approve on second reading, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body.

ORDINANCE – 2nd READING – Amending Chapter 8.60, Nuisances, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming. Mr. Roybal moved to approve on second reading, seconded by Mr. Cook. Motion carried. Voting "yes" – all members of the governing body.

ORDINANCE – 2nd READING – Amending Chapter 6.08.200, Keeping of Bees, of Chapter 6.08, Animal Care and Control Regulations Generally, of Title 6, Animals, of the City of Cheyenne, Wyoming. Mr. Roybal moved to approve on second reading, seconded by Dr. Aldrich. Upon inquiry, Mr. Johnson explained there are no changes from when the state updated their requirements in 2015, the amendment just moves the section from Nuisance to Animals in the city code. Motion carried. Voting "yes" – all members of the governing body.

ORDINANCE – 1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the Zoning Classification from CB Community Business to MUB Mixed-Use Business Emphasis for land located northwest of the intersection of Nationway and Logan Avenue – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Reappropriating the Fiscal Year 2022 Budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 & §16-4-113. Motion (per Consent Agenda) carried. (#6205)

[CA] Professional Services Agreement between the City of Cheyenne and Plan One Architects, for the Emergency Response Facility design and construction Administration Services Project (Specific Purpose Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$752,580.00). (#7465)

Memorandum of Understanding between WYDOT and the Cheyenne MPO for the Transit Connection Feasibility Analysis: Northern Colorado to Southern Wyoming. Dale Steenbergen, President/CEO of the Greater Cheyenne Chamber of Commerce, spoke in support of the project noting the importance of studying transportation along the front range. Mr. Steenbergen advised there are a few transportation projects for the front range in the works including Bustang (bus that currently goes from Ft. Collins to Denver) and the possibility of a front range rail. Mr. Steenbergen noted the MOU and analysis will be pivotal for transportation between Wyoming and Colorado. Mr. Roybal moved to approve in an amount of \$43,108.85, seconded by Mr. Johnson. Concern was expressed that with increased options of transportation on the front range, we may be incentivizing people to live in Colorado and work in Wyoming. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Esquibel voting “no”. (#7466)

Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO) and HDR Engineering, Inc., for the Transit Connection Feasibility Analysis: Northern Colorado to Southern Wyoming. Tom Mason, MPO Director, advised the agreement is for the Wyoming portion of the study and that transportation choices will vary. He noted the study is for transit feasibility between Cheyenne and northern Colorado. Upon inquiry, Mr. Mason advised the study will take approximately 1 year and will include determining how many people in the community currently commute daily and will determine if there is a demand for van pooling or to extend the Bustang route which currently ends at the Harmony/1-25 interchange. Mr. Roybal advised there was no recommendation from the Public Services Committee. Mr. Roybal moved to approve in an amount of \$86,217.70, seconded by Mr. White. It was expressed that it is believed our community has experts to provide the study services. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Esquibel voting “no”. (#7467)

[CA] Consideration of Bid #S-9-22 for a Contract between the City of Cheyenne and Sustainable Modular Management, for the Compost Facility Prefabricated Metal Office Trailer Project (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$118,794.00). (#7468)

[CA] Consideration of Bid #E-7-22 for furnishing fourteen (14) new four-door 2022-2023 model utility (SUV) Police Interceptors, for the City of Cheyenne, Cheyenne Police Department (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Duval Ford/Dana Safety Supply, Jacksonville, FL and Livingston, MT, in an amount not to exceed \$839,510.10).

[CA] Consideration of Bid #E-22-21 for furnishing One (1) ¾ ton crew cab truck for the Traffic Division, one (1) ¾ ton regular cab truck for the Facilities Maintenance Division, and three (3) ¾ ton crew cab trucks for the Street and Alley Division (2015-2018 & 2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Spradley Barr Motors d/b/a Ken Garff, Cheyenne, in an amount not to exceed \$237,040.00).

[CA] Consideration to Purchase between the City of Cheyenne, and Motorola Solutions/Bearcom, for the purchase of Fourteen (14) Motorola APX8500 Radios for the City of Cheyenne Police Department (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$60,192.83).

[CA] Consideration of Bid #E-9-22 for furnishing three (3) new multi-purpose response vehicles (type 1 pumpers) and one (1) 100' heavy duty aerial tower, for the City of Cheyenne, Cheyenne Fire & Rescue Department (Specific Purpose Sales Tax) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

Appointment of Jeffrey Storey to the Airport Board. Mr. Roybal moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (Mayoral appointment).

Announcement was made that due to the Martin Luther King Jr. holiday on Monday, January 17, 2022, regularly scheduled City Council Committee meetings will instead be held as follows: Finance Committee will meet at Noon on Tuesday, January 18, 2022 and Public Services Committee will meet at Noon on Wednesday, January 19, 2022 at the Kiwanis Community House at 4603 Lions Park Drive, Cheyenne, WY, and via electronic conference meeting.

Under other business:

Bill Gonzales, Street and Alley Division, requested equitable benefits across the board for City employees when there is a snow related closure. He explained his division is responsible for reporting to work for snow removal and there is no compensation for the work performed. Mayor Collins expressed appreciation to Mr. Gonzales and his co-workers for their services.

Mr. Johnson noted the governing body goal setting session will be held on Saturday, January 15th, and that Mr. Gonzales' request is a planned topic of discussion.

Dr. Aldrich advised a Ward III Council and Coffee will be held this Saturday, January 15th, from 8 a.m. to 10 a.m. at Dazbog Coffee, 3911 E. Pershing Blvd. She also invited members of the governing body to attend the event “In Her Shoes” that will be held January 11-January 13th at the Kiwanis Community House, 4603 Lions Park Drive. She reported Safehouse hosts the role playing session and attendees participate as being in domestic violence relationships.

Mr. White thanked his City Council colleagues for a successful year and wished Mr. Roybal well in his upcoming Council Presidency. He also advised he is looking forward to the upcoming governing body goal setting session noting it was very helpful last year. He further

expressed appreciation to the public, members of the governing body and city staff and particularly Jennifer McClelland, Executive Assistant to the City Council.

Mayor Collins advised the January 24, 2022 City Council meeting will be held at Storey Gym, 2811 House Avenue beginning at 6:00 p.m. and thanked the Civic Center staff for use of the facility for the meeting.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:05 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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